

same alleged employment relationship and operative facts. Accordingly, any alleged ambiguity regarding “the Company,” standing alone, is insufficient to render the Arbitration Agreement substantively unconscionable.

Because Plaintiff has failed to demonstrate substantive unconscionability, the minimal procedural unconscionability present is insufficient to render the Arbitration Agreement unenforceable.

Waiver?

Plaintiff also argues that Defendants waived their right to compel arbitration through unreasonable delay.

The right to compel arbitration is contractual and may be waived, either expressly or through conduct inconsistent with an intent to arbitrate. (See Code Civ. Proc., § 1281.2; *Davis v. Blue Cross of Northern Calif.* (1979) 25 Cal.3d 418, 425.) However, delay alone does not establish waiver. In determining a waiver, the court can consider whether: (1) the party's actions are inconsistent with the right to arbitrate; (2) “the litigation machinery has been substantially invoked” and the parties “were well into preparation of a lawsuit” before the party notified the opposing party of an intent to arbitrate; (3) a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay; (4) a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings; and (5) “important intervening steps [e.g., taking advantage of judicial discovery procedures not available in arbitration] had taken place.” (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 573, 580.)

Here, the record does not support a finding of waiver. The record shows that after Plaintiff filed this employment action on 12/11/25, Defendants made multiple unsuccessful attempts to have Plaintiff submit her claims to arbitration. (Javier Decl., ¶¶ 3-10, Exhs. 1-9.) Defendants repeatedly advised Plaintiff of their intent to file a motion to compel arbitration if no stipulation is reached. (Id.) Defendant thereafter filed an Answer on 2/18/26 and filed this motion to compel arbitration shortly

		thereafter, on 2/24/26. Plaintiff does not show that Defendants acted inconsistently with an intent to arbitrate, such as by engaging in extensive discovery, filing substantive motions, or posting jury fees. Accordingly, Plaintiff has not demonstrated that Defendants waived their right to compel arbitration. In sum, the court GRANTS Defendants’ motion to compel arbitration. The court also VACATES the 11/23/26 jury trial and STAYS this action pending resolution of the parties’ arbitration. (Code Civ. Proc., § 1281.4.) The court sets a Status Conference re Arbitration for November 16, 2026 at 9:00 am, in Dept. W8. Plaintiff’s counsel SHALL file and serve a status report regarding the arbitration <u>no later than 10 court days prior</u> to the hearing. Defendants to give notice.
18	Wong vs. Makhail	<u>Demurrer (re Third Amended Complaint) (x2)</u> <u>Motion to Strike</u> <u>Motion to Be Relieved as Counsel of Record (x2)</u> The operative pleading is the Third Amended Complaint (“TAC”), which contains a single cause of action for “invasion of privacy through publication of private facts and false light publicity”, asserted against all defendants. Plaintiffs’ opposing briefs (ROAs 427, 429) are unhelpful. The briefs fail to state whether they are responding to the demurrer/motion to strike brought by Defendant Makhail or Defendants Powerstone and Mourer, or both. More importantly, Plaintiffs appear to be responding to arguments not made in any of the moving papers (e.g., statute of limitations, standing, sham pleading) and claims not made in the TAC (e.g., fraud, IIED, NIED).